Summary: Classifying the Conflict in Syria

Terry D. Gill, *International Law Studies* (U.S. Naval War College), Vol. 92 (2016), pp. 353–380

In one paragraph. Gill classifies the armed conflicts in Syria (as of early 2016) under international humanitarian law (IHL). He concludes there are **at least two, and arguably three, separate conflicts – all non-international (NIACs)**: (1) one overall NIAC between the Syrian government and the various opposition groups, Al Nusra, ISIS and the Kurds; (2) a NIAC between the US-led anti-ISIS coalition and ISIS; and (3) probably a NIAC between Turkey and the Syrian Kurdish militias. His central legal argument is that a foreign state's military action against an armed group on another state's territory **without that state's consent does not automatically create an international armed conflict (IAC)** – the facts on the ground decide, not the lack of consent. He acknowledges that this is unsettled and that the ICRC takes the opposite view.

I. Introduction

What began as a popular uprising in February–March 2011 has become a complex set of conflicts involving many state and non-state actors. The article (1) sets out the main parties, (2) explains the law on classification and the debate on consent, (3) applies it to Syria, and (4) asks whether classification matters in practice.

II. The main contenders

There are reportedly hundreds (by some accounts about 1,500) of armed groups, mostly local and with shifting alliances. Gill identifies the main ones:

Actor	Composition and position (2015–16)	Aims
Syrian government and allies	Assad government controls Damascus, the state machinery, most major cities and the coast; 100,000–125,000 troops, the only party with air and naval forces. Still the legal “Government of Syria” (recognized at the UN). Backed by the National Defense Forces militia (60–80,000), Hezbollah (5–8,000), Iraqi and Afghan Shiite fighters, Iran (Revolutionary Guard, training, money) and Russia (~4,000 personnel, airstrikes from Sept. 2015).	Stay in power; retake strategic areas; be included in any settlement.
Mainstream opposition	Two loose sub-coalitions: the secular Free Syrian Army (“as much a label as a coherent military organization”) and the Islamist Islamic Front. Foreign-supported but without a central command; sometimes clash with each other. Linked to the Syrian National Coalition, recognized by ~80 states and the EU.	Overthrow the government; differ on what should replace it.
Al Nusra Front and allies	Al Qaida-affiliated jihadist coalition; refused to merge with ISIS in 2014; clashes with the secular opposition. With the opposition, controls ~20% of Syria (excl. ISIS and Kurds).	Overthrow the government; Salafist theocratic state.
ISIS	Originated in Iraq (Al Qaida in Iraq); HQ in Raqqa; self-proclaimed caliphate; highly organized military and civil administration; 20,000–31,500 fighters by CIA estimate (others much higher). Fights the government, opposition, Kurds, Al Nusra, Iraq and many states.	Ultra-radical Salafist “Islamic State”.
Kurdish militias (YPG)	Control the de facto autonomous region (Rojava) in the north since the government withdrew in 2012; ~40,000 fighters; ~11.5% of Syria. Supported by US airstrikes; Turkey treats the YPG as a terrorist extension of the PKK.	Far-reaching autonomy; defeat ISIS; hold Kurdish areas.

Actor	Composition and position (2015–16)	Aims
Anti-ISIS coalition and Turkey	US-led coalition of ~10 states striking ISIS in Syria since Aug. 2014 (3,809 strikes by April 2016, 3,577 by the US), based on (collective) self-defence. Syria has not consented and calls it unlawful, but has not resisted; strikes do not target Syrian government forces. Turkey also shells and bombs the YPG.	Defeat ISIS (Turkey: also contain the Kurds).

III. The law on classification and the role of consent

A. Types of armed conflict

- **IAC** – between two or more states. Gill supports the low **"first shot" threshold**: any use of force by one state against another's armed forces, or any occupation (even unopposed), triggers an IAC. A border skirmish does not activate every rule (e.g. POW rules only matter once prisoners are taken), but IHL applies. The rival view, which requires sustained force, risks a legal vacuum.
- **NIAC** – at least one party is a non-state organized armed group (OAG); it requires a minimum of **organization** and an **intensity** above riots, sporadic violence or isolated terrorist acts. It can be government v. OAG or OAG v. OAG.
- **No third category:** the idea of a "transnational armed conflict" has not been generally accepted, so cross-border conflicts are either IACs or NIACs.
- **Internationalization:** a NIAC becomes an IAC if an outside state exercises **overall control** over an armed group (the prevailing standard from *Tadic*; the stricter "effective control" test from *Nicaragua* is more about state responsibility). If a state intervenes directly against the territorial state, there are usually **two parallel conflicts**: an IAC between the states and a NIAC between the government and the group.
- **Applicable law in NIACs** is thinner: Common Article 3, sometimes Additional Protocol II and other treaties, plus customary law (the ICRC study identifies 148 customary rules for NIACs), which has greatly narrowed the gap with IACs.

B. Does lack of consent make the conflict international?

Clear cases: attacking a state's armed forces or national assets, or occupying its territory, is an IAC; intervening *with* the government's consent leaves the conflict a NIAC. The hard case is a state acting **without consent**, but **only against an armed group** on the other state's territory.

- **View 1 (Akande, Sassòli, Fleck; ICRC 2016 Commentary):** any non-consensual intervention is necessarily against the territorial state, so it creates an IAC between the two states.
- **View 2 (Gill, Lubell and, he says, most authors):** if force is aimed exclusively at the group and not at the state's organs or national assets, it remains a NIAC (provided organization and intensity are met).

Gill's five arguments for View 2:

- **1. No automatic breach of sovereignty.** An intervention may have a legal basis – a UN Security Council mandate, self-defence against an armed group acting independently, or possibly necessity – so it is not necessarily directed "against" the state.
- **2. *Jus ad bellum* and *jus in bello* are separate.** Even if sovereignty is violated, that does not make the situation an inter-state armed conflict; tying classification to legality would undermine the equal application of IHL. Civilians are protected in much the same way under NIAC rules, and areas held by the group are not under the state's control anyway. If the two states actually fight, detain each other's soldiers, detain civilians or occupy territory, the IAC rules apply – because of those facts, not the lack of consent.

- **3. Treaty text and case law.** Common Articles 2 and 3, the 1952 ICRC Commentary and *Tadic* ("resort to armed force between States") make no reference to sovereignty or consent. A conflict between a state and a group in another state still fits Common Article 3.
- **4. State practice.** US drone strikes in Pakistan and Yemen, Turkey against the PKK in Iraq, Kenya against Al Shabaab in Somalia and Colombia against FARC in Ecuador: none of the states considered themselves at war with each other. The exceptions (DRC in the 1990s, Israel–Hezbollah 2006) were IACs because of occupation, attacks on infrastructure, blockade, etc. – not merely lack of consent.
- **5. Doctrine.** Most scholars treat the nature of the parties as decisive, although the 2016 ICRC Commentary disagrees, which is why the question cannot be called settled.

Gill therefore says classification should depend on factors such as: the nature of the parties; whether the intervention targets only the armed group; occupation; detention; who actually controls the territory, population and infrastructure; and whether the group and the territorial state are allies or enemies.

IV. Applying the law to Syria

- **Conflict 1 – one overall NIAC (since at least early 2012).** Parties: the government and its militias; the mainstream opposition (one or two parties); Al Nusra and allies; ISIS; and the Kurdish militias/administration. Different aims and clashes between them do not create separate conflicts – like the Thirty Years War, it is one conflict with many parties (and the applicable law would be the same either way). **Russia and Iran** fight in support of the government, with its consent, so the conflict remains non-international; there is no evidence they control the government.
- **Conflict 2 – anti-ISIS coalition v. ISIS (since August 2014): a separate NIAC**, even though Syria has not consented. Strikes target ISIS (and the Khorasan Group), which controls its own territory, rather than government territory or assets. There has been no occupation, no overall control over a group, no clashes between coalition states and Syria, and no state considers itself at war with Syria. US air support for the Kurds does not internationalize it either.
- **Conflict 3 – Turkey v. Syrian Kurdish militias: probably a separate NIAC.** Turkish shelling and airstrikes intensified from February 2016 and likely crossed the threshold. There have been no clashes between Turkey and the Syrian government (apart from an early aerial incident), so it is not an IAC.
- **Ceasefire (from 26 February 2016)** between the government and the mainstream opposition largely holds, but it excludes ISIS and Al Nusra, and a temporary ceasefire does not end a conflict – only a settlement or a long-term cessation of hostilities would.

V. Does classification matter?

- **Applicable law.** Targeting rules (distinction, proportionality) are now similar in both types of conflict, but important differences remain: POW status and the law of occupation apply only in IACs; detention rules for NIACs are unclear; the law of naval warfare (e.g. a blockade) applies only in IACs; and criminal responsibility differs in some respects.
- **Relations between the parties.** If coalition strikes on ISIS were an IAC against Syria, the coalition states would logically be "at war" with Syria and also with Russia and Iran as its co-belligerents – with consequences far beyond Syria.
- **Geography.** In an IAC, IHL applies across the territory of all the warring states and in international sea and airspace. A NIAC regime is in principle confined to the state concerned (plus spillover), and its limits are much less settled.

Gill warns: anyone who thinks the coalition is at war with Syria, Iran and Russia should "do a serious reality check" – "be careful what you wish for".

VI. Conclusions

There are at least two, and arguably three, armed conflicts in Syria, all non-international. Lack of consent should not by itself make a conflict international without objective reasons for doing so. Questions remain open, especially the role of consent and the geography of armed conflict. Above all, classification matters, and conclusions that could widen the conflict – or distract from the human tragedy in Syria – should be avoided.

Link to the ICRC 2024 opinion paper. The two texts disagree on one key point. The ICRC (2016 Commentary; 2024 paper, section 2.E.i) holds that any force used on a state's territory without its consent – even if aimed only at an armed group – creates an IAC with the territorial state, alongside any NIAC with the group. Gill argues that such a situation remains a NIAC unless the facts (fighting between the states, occupation, attacks on state assets, detention) show an inter-state conflict. Both agree that the *legality* of force (*jus ad bellum*) does not determine classification, that overall control internationalizes a conflict, and that a NIAC requires organization and intensity. Gill also rejects a "transnational" conflict category, as the ICRC does.